Memorandums of the principles of the course of actions taken towards the Aboriginal territory of Formosa

(No. 9)

On the 19th of the 10th month, the Tsung-li-yamen sent an answer to the effect, that the proceedings proposed by our Ambassador contained some difficult points among them.

On the 20th, our Ambassador Okubo, with the Minister Yanagiwara and others, went to the Tsung-li-yamen and held a negotiation with the four principal Chinese officials with Wan-seang in their head, when these Chinese officials spoke as follows:

"As for the convenience to the both parties proposed by you, our

" our government feel much inconveni-
" ence for it. We do not like use-
" less discussions on the present mat-
" ter, but are desirous to settle ami-
" cably those questions. We do not
" wonder, if you could not unders-
" tand, why our government find some
" difficult points in your proposal.
" We shall, then, advance on the path
" of moderation and endeavour to
" settle, as much as possible, ami-
" cably the present questions each by
" frankly laying before the other, his
" own true circumstance.

"Now, if your government hold
" your expedition against the abori-
" ginal Formosa as their obligation,
" we have also an obligation towards
" our people. The aboriginals of
" Formosa live within our jurisdiction
" and we shall look very much
" disgraced in the eyes of our people,
" if we should entreat the retiring of
" your troops despatched against them,
" by the payment of an indemnity. We
" say, consequently, that it shall be
" very much inconvenient for us, if
" we do not once examine the present
" matter. We have already recognized
" your expedition as the rightful one,
" you came originally by right, and
" now, why there might be any reason
" for refusing to depart, for another
" right. We expect to examine the con-
" dition of the Aboriginal Formosa
" and then to compensate you for your
" loss, we hope consequently, that
" you will believe in our words. Still,
" even though our emperor would
" indemnify your shipwrecked peo-
" ple, this should not be specially
" mentioned in a writing and the

amount

"amount of the indemnity could
"not be fixed beforehand, because
"that indemnity could be given only
"after the departure of your troops.
"Speaking figuratively, if you
"shall negotiate, grasping a sword
"by your hand, the negotiation should
"be broken, but if you shall negotiate
"throwing away your sword, then the
"present difficulty should be certain
"to be amicably settled. Besides, we
"know already the amount of expen-
"ses incurred by your government, but
"the present moment is not proper to
"discuss it on our part and you
"could not make a pretense of it.
"We only desire, that the both parties
"should negotiate for their right-
"ful title. If you would appreci-
"te our meaning, our government
"should take the extraordinary measures,
but

"but if we should now determine the am-
"ount of money to be paid, we are cer-
"tain to be blamed by the foreign
"powers. If you would not consent to
"our desire we could not of course
"satisfy yours too on our part, and
"this is an only essential point, though
"we shall utter several thousand words
"on the both sides. Now, the document
"of four articles forwarded to you con-
"tains the main points of our discus-
"sion, and besides we shall commit
"the conference of to-day into an
"official writing to be also forwar-
"ded to you. We do not desire in
"any ways the failure of your mission,
"but even supposing that we should
"consent to pay the indemnity, we
"could not escape our disgrace, if it
"might be entitled as an indemnity
"for the despatch of your troops. We
hope

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/

" hope, that you will put the faith on
" our words. We are sorry, that we
" could not consent to the proceedings
" proposed by you, but the forms of
" writing shall be arranged with
" you. As for the day to be fixed
" for your reception, we shall communi-
" cate it to you, after consulting with
" the Prince Kong; to-morrow, we hope
" to see the secretary Tei at our office"

The chief points of the four articles alluded to above, were as follows, viz:

1st " Your troops advanced into
" the aboriginal territory and your
" government recognized those Ab-
" originals as a masterless savages.
" consequently, your government did
" not punish them, knowing that they
" are subject to our jurisdiction.
" Now, to punish them, not knowing
" their

" their subjection to our rule and to do
" the like, knowing this circumstance, are
" two distinct things, quite different
" from each other. We think therefore,
" that in this question Japan should
" not be held wrong."

2nd " We have already explained
" that the Aboriginal territory belongs
" to China. After the departure of your
" troops, we shall never mention the
" matter of the present expedition and
" we desire that your government shall
" never take about the cession of the
" Aboriginal territory to China."

3rd " The present question arose
" from the murder of your shipwrecked
" people, by the aboriginal savages.
" We assure consequently, that China
" shall examine the condition of those
" savages, after the departure of your
" troops."

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/

4th " as to your injured country-
" men, we shall examine their circum-
" stances and then, our Emperor will
" kindly provide for their consolation
" by his special grace."

To this the Ambassador Okubo replied as follows:

" When on the 18th inst. I received
" your kindly visitation, I frankly
" laid before you some proceedings
" convenient for the both parties.
" Then, you said that you shall
" hold a consultation with the Prince
" Kong and other high officials.
" Moreover, as in your answer of
" yesterday, you said, that all the
" high officials take the same view
" in regard to this matter, I am
" now desirous to receive a clear
" answer for it. We despatched
" originally our troops with the
" concurrence both of the government and
" the people and we now could not stop
" midway. If you should desire to
" obtain the possession of the territory,
" now occupied by our troops, you
" must of course be bound by an
" obligation towards us, for which I
" hold my proposals as convenient to
" the both parties. Our nation have
" incurred an expenditure for the
" expedition, and thus our govern-
" ment require some satisfaction, in
" order to evacuate the territory
" occupied by our troops.

" I do not understand, of course
" what shall be the measures to be
" taken by your government after the
" examination, but your despatch
" lately sent to me amounts only to
" the useless repetition, whether the
" Aboriginal Territory belongs to China

or

" or not; I now sincerely desire to
" know exactly the future arrangement.
" What examination do you intend to
" make, after the evacuation by our
" troops? What satisfaction do you
" mean to make towards our govern-
" ment? I cannot order the evacua-
" tion of the Aboriginal Territory by
" our troops, for the measures proposed
" by you. I do not covet, of course,
" for the indemnity, but if I should
" not be made clear of the measures
" to be taken by you and of the
" amount of the indemnity, with
" what honor can I report the result
" of my mission to our Emperor and
" meet our countrymen, after my
" return to Japan? If you would maintain
" your opinion, then there should be
" very danger of the rupture of the
" conciliatory measures, convenient for

" the both parties. This is the reason,
" why I demand repeatedly the clear
" and definite answer. Your objection
" is now very clear, but it is convenient
" only for the one party. I may direct
" the departure of our troops accord-
" ing to your proposals, but what evidence
" there might be for it? I may consent
" to your proposals for myself, but what
" should say both our government and
" the people? Your proposition, that
" your Emperor shall make the satisfac-
" tion after the departure of our troops
" is quite contrary to the conciliatory
" spirit, with which you desire to bring
" the present question to a conclusion,
" satisfactory for the both parties.
" Our government do not confide in any
" diplomatic matter except there be
" some written evidence on it. The
" opening of roads and the provisions

made

" made for the safety of the navigat-
" ion, together with several other works
" have necessitated an enormous
" amount of expenses and cost very
" painful labour in order to finish
" them. I have no doubt about the
" promise of satisfaction of your
" Emperor, but here is the want of a
" clear evidence. How I could order
" the evacuation, without any evidence
" concerning your promise. If I
" should rely on your words of the
" present moment and if afterwards,
" there might be found some points
" unsatisfactory for our government,
" then we must again charge your
" government with a wrong, and there
" might then arise some great diffi-
" culty. I want therefore some
" reliable written evidence confirm-
" ing the text of the official writing
" as well as the text itself. I am de-
" sirous to see you tomorrow or after-
" to-morrow at the latest and beg your
" further consideration, which I shall
" do also on my part."

On the 21st day of the same month, the Ambassador sent to the Tsung-li-yamen the Secretary Tei with a letter, explaining the amount of the expences, which letter is as follows:

"The expenses of our expedition
" are very great, which your country
" would be responsible to indemnify,
" but to save the appearance, you pre-
" tend to pay the consolation-money
" to our ill treated countrymen given
" them by the special grace of your
" Emperor after our troops in Formosa
" should have been withdrawn."

"I will require that your Excel-
" lencies shall give a document which
shall

" shall be couched in the above, meaning and denote, how much dollars
" are to be paid and upon which the
" mark of certificate shall be fixed,
" so that he could be enabled to
" make report to his godernment; for
" if the document shall not been
" given, there shall exist no evidence
" to rely upon."

Li, - Kui-Fen and the other high Chinese officers refused to give the document demanded, persisting upon their former agreement; therefore, Mr. Lei returned to his residence, promising them that the Ambassador shall hold the conference on the 23rd day.

On the 23rd day of the same month, the Ambassador with the Minister Aganagiwara and others went to the Tsung-li-yamen, to

and two other high officers; Wan-seang.
argue with Wan-seang, said then as follows:

" As to the question of the former
" day, our opinion was communicated
" to Mr. Lei. For your opinion has been
" that it requires certain sum to inde-
" mnify the expenses of war, before the
" withdrawal of your troops in Formosa,
" the arrangement has been made and
" the name of consolation decided;
" But there is a great difference between
" the indemnity and the consolation,
" and the sum required might be
" suitable if we should consider it as
" a consolation but it shall be too
" little, if we should consider it as an
" indemnity for the expenses. However
" the amount demanded by you, is
" far much above to what shall be
" given as consolation in our opinion,
" and it can not be possible for us

now

" now to fix its amount. As the
" convenience for the both sides was
" ~~was~~ proposed by you, We sent the writing
" containing the four articles, submit-
" ted to your choice, and we never
" opposed to pay the money; moved,
" believing your word that there were
" the great expenses, it was proposed
" to pay the consolation, for our coun-
" try hopes to maintain the peace bet-
" ween the both countries. But its
" amount can not be fixed, because
" it depends on the will of the Emperor;
" If you however places much weight
" upon the friendly relation between
" the two countries, you shall prefer
" the procurement of the consolation,
" to that of the indemnity for the expen-
" ses of war. Now here is another ques-
" tion; Do you think it to be right-
" ful for us that our country takes

" upon itself the treatment of the For-
" mosan savages, or think us as compell-
" ed to do the same? Do consider,
" we hope, the friendly relation as the
" first important thing and the expenses
" as the next one. The arrangement con-
" venient for the both countries, was not
" originally proposed by our country
" but the four articles were proposed
" by the Prince and us, for we desire
" to make the conclusion convenience for
" the both countries. Besides this, we do
" not recognized any other expenses. Although
" you say that the Formosan territory is
" without master, our country claims it
" as lying within the jurisdiction of our
" country."

The Ambassador said:

"Any important question can
not presently be brought to a good
result. Although the convenient arrange-
ment

" arrangement was discussed hitherto,
" on account of the importance of the
" peaceable relation between the two
" countries, it has been originally un-
" satisfactory for our government, if
" the compensation take the name of
" consolation. But it was once consen-
" ted to considering the circumstance
" of your country. However the docu-
" ment must be obtained and also a
" written contract needs be made. But,
" when you can not fix the amount of
" money and not make a written con-
" tract, I can not return home relying
" upon your mere words; In general,
" in such an important case bet-
" ween any two countries, a written
" contract must be made, If you
" shall suppose yourseldes to be in
" my position, you shall unders-
" tand Well my words. Our expedi-

" tion is a rightful one as already
" explained many times; Now, when
" our troops shall be withdrawn by
" request of your government, it shall
" be natural course of things that your
" government must fulfil their duty.
" As the question whether the Formosan
" territory belongs or not to your coun-
" try, had been argued, but not brought
" to end, an arrangement convenient for
" the both sides has been discussioned;
" Now, as you say, it is unnecessary to
" return to the same question many
" times argued. I can not understand,
" that the giving up the land and with-
" drawing our troops must be followed
" by the loss of the claim. Although the
" original question has been undecided,
" but it is never acknowledged by us,
" that the land of the savages belongs
" to your country; our expenses are
very

" great and the dead and wounded
" of our troops are very numerous,
" so that our difficulty may not be
" described, and now that our action
" is about to succeed, your country
" will come after us, but I think, you
" would not be in tranquility for
" it. We have came by right to
" proceed, and will go back also by
" right, at your request, all our actions
" being done by right; The Formosan
" savages have the duties to make for
" us; if your country takes now the
" law of them, your country must
" have to make the same duties for
" us. Your writing containing the
" four articles strike against the
" right of our country. If the amount
" of money to be given as the consola-
" tion, is not mentioned this writing
" could be not relied upon. Such

" writing shall be immediately sent
" back. Then, the conversation on the
" arrangement convenient for the both
" sides hitherto repeated, ends today
" without any result. I shall then
" return to the home country in a few
" days. But Now, I inform you that our
" object against Formosa must be attain-
" ed, at any rate."

On the twenty fourth of the same month, having determined to return to Japan the Ambassador Okubo bid farewell to the representatives of every treaty power who are at the court of Peking.

On following or twenty fifth day, he prepared a dispatch in which he rendered an account of the late proceedings, stating in detail their (Chinese officers') faults and mistakes and which he sent to Tsung-li-

yamen

Yamen: the substance of which may
be summed up thus, "other day", say
he "I had a conference with you
" on the subject of taking some mea-
" sure which will be good for both of
" us, but you have found some pretext
" not to render yourselves amenable
" to such a subject. The result is that
" I have been compelled to begin my-
" self and would had have our troops
" evacuate Formosa and have wished
" that the taking of necessary steps
" should be left to you, abandoning
" the print of our labour in clearing
" and cultivating land, toward the
" success of your favorite policy of
" "tranquillizing and cherishing in
" thoughts people of all quarter," and
" maintaining the good relation bet-
" ween both countries. But there is
" no reason why those who labour

" should not be entitled to the due profits
" arising from their labour and why
" those who do not labour should be
" entitled to reward and glory, and those
" who would get profits should be liable
" to labour. Such is the general right
" and duty of nations."

"Fromall this we should expect
" that your country should give some re-
" muneration to our country which has
" taken a great pain and labour. But
" I find you, to our great surprise, still
" maintaining your previous opinion
" concerning the jurisdiction of the regi-
" ons under consideration, and demand-
" ing of us the immediate evacuation
" of the regions by our troops. Now
" I am quite hopeless and about to
" leave here. Still I have one thing
" to think of. as in our last answer
" to your dispatch I have no mention
of

" of my objections and questions, I
" am afraid that you should take
" me as entertaining no contrary
" opinion. Besides I have now un
" derstood the true meaning of
" your last dispatch. You mean, as
" I may construe it, Suppose I say
" hundreds and thousands of words
" and still you will say, you had
" the jurisdiction over those regions.
" If two countries have a dis
" pute between them, how do they
" come to the decition? We must
" have authority before we could
" assert something and we must
" consult the public law before we
" could come to good understand
" ing. Now having been asked
" the proof of your jurisdiction over
" those regions, you have answered
" something; But Daisan-fooshi

" and the payment of taxes by the savages
" to which you had frequent references
" in citing authorities and proofs, only
" shew that you are in contradiction
" with yourselves. Whereon you had recour
" se to another direction and said we
" have interfered with your affairs and
" asked vexatious questions. But what
" I and the Minister Yanagiwara had
" said is confirmed by experience, the
" geographical works of many countries,
" several books of your country, past
" vents, the speech of Tsung li-yamen,
" all of which are not conflicting with
" each other. Whereon you had recourse
" to still another direction and said
" what has been said by foreigners
" and strangers are only conjecture
" and supposition.
" Jurisdiction implies real gover
" ment, this is what is said in Inter

national

national law. But you ignores the
law, pretending that you are not
acquainted with it. Again you
said this international law relates
exclusively to European matters and
China is not in the community of
nations which are governed by this
code of rules. In this you forget
that if there be a country at all,
there must be a municipal law,
and if there be an intercourse among
nations there must be a internation-
al law. This is the immutable
nature of things. International
law consists of two codes of laws
and rules, namely, first, Natural
law and secondly, treaties and
conventions of nations, the latter of
which you may if you please it
have reason in not observing, but
the former of which has origin in

the immutable relations of things and
in the social and rational nature
of humanity, and must be observed
by us alike, however different countries
may be in respect of distance and
religion and morals, and not a
mere body of rules which are prac-
tised only in Europe. I wish to
decide the present case on the autho-
rity of this law, just as we use the
balance to know the weight of things
and use the measure to know the
length of bodies. If, as you seem
to assert, the public laws were not
valid enough to decide cases and
testimony and authority were
too uncertained to prove facts, how
would a dispute between two coun-
tries come to the decision, and I
would say a word no more, on the
subject. But I had one thing

to

" to complain of. The notice made
" to you, of punishing the aboriginal
" tribes, has been set at naught by
" your Yeung li-yamen, and when
" we sent a commission, with troops
" to take vengeance on the tribes in
" favour of our wrecked people and
" to remove the evils in favour of the
" navigators you would not refresh
" us in our difficult and dangerous
" work, but you are very proud of
" your mercy in not "shooting an
" arrow on us."

"Under these circumstances our
" philanthropical action, to our
" lasting regret, has been designa-
" ted by a bad name of a hostile
" act, while our undertaking of
" punishing the savages arose from
" the necessity of protecting our
" own people. Henceforth inside and

" backward of the mountains we shall
" clear land further and protect the
" submitting and punish the opposing
" and finish our action, not permit-
" ting any molestation on the part of
" your country. Finally I have to say
" that the present case will be not decid-
" ded by arguments, Both countries,
" therefore, shall each go its own way
" and exercise the right of sovereignty,
" we would not wish to hear whatever
" explanations and arguments you may
" offer. I am in haste to leave here
" and could not go to your Yung li-
" yamen to take leave of you."

The minister Yamaguchi had
not a satisfactory result in the
question of his reception by the
Empire of China and was told that
his word implied the contempt to-
ward China, he, therefore, sent a
dispatch

dispatch, saying that he could not properly stay here any longer.

That day, our ambassador ordered his suit take their return journey before him.

Unexpectedly, in the same day, Mr. Wade, the English Minister, visited the house, where our ambassador staid, and said, that "the high officials of the Tsung-li-"yamen at length determined, that "100,000 Taels should be paid im-"mediately; as the relief to the suf-"ferers, 400,000 Taels should be "paid after the withdrawal of the "troops, as the indemnity of the vari-"ous expences of the expedition pit-"ted out by Japan, and also the "written contract, which you require, "should be given, and applied to "me to inform this to you privately."

On the same day, our ambassador went to the English Legation, and spoke to the following effect:

"The amount of money being "no question, 500,000 Taels should be "received according to the Chinese "proposal, but 1st The Formosan ex-"pedition should be recognized as "rightful one; 2nd The embarrasding "questions which existed before should "be annulled; 3rd 100,000 Taels should "be relief to the sufferers, 400000 Taels "should be the indemnity of the various "expences, such as the making of roads, "the building of houses; etc. and the "Chinese government should pay "these before the withdrawal of the sold-"iers."

The English minister, accordingly, promised, that he should write all this, and communicate it to the.

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/

the Chinese government.

On the 27th day of the same month, the Tsung-li-yamen sent a letter to our Ambassador, which said, that "as to the Formosan question, Mr. Wade, the English Minister, having several time consulted with you in our behalf, there is nothing which we do not know, therefore we submit to your consideration a draft of the articles, which have been discussed by the three parties. We beg, that you will inform us, at what hour and place you will meet us next day, or whether you will visit our office. Further we send a draft of the agreement to you."

In the same day, Mr. Wade, the English Minister, being at the Tsung-li-yamen, he made a writing, which assured, that the Chinese government should not alter the agreement, which writing he first presented to the high officials of the Tsung-li-yamen, and then sent to our ambassador, together with a draft of the stipulation.

In the 30th day of the same month a reply from our Ambassador was sent, which was as follows: viz.

"The letter of the Chinese high officials and the draft of the three articles have been received, and draft of the writing, prescribing the measure, which was sent through Mr. Wade, the English minister, having been examined, its property has been found, and, therefore I will go to your office and sign it with you."